IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 101
CA.CAA-45(ND)/2025

IN THE MATTER OF:
ADVANTAGE FASHIONS PRIVATE LIMITED With SPAN INDIA PRIVATE LIMITED. …. Petitioner/Applicant

Order under Section 230-232 of the Companies Act, 2013.

Order delivered on 19.05.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:
For Applicant : Mr. CS Vaibhab Agnihtori , Mr. Sameer Srivastava, Mr. Vinay Kumar, Advs.
For Respondent :

ORDER

This is the 1st motion application filed under Section 230-232 of the Companies Act, 2013.

This application has been filed seeking the following prayers:-

a. *To allow this Application;*
b. *To pass directions for the dispensation of the meeting of the Equity Shareholders of the Applicant Company No. 1 in view of consent vide affidavit received;*
c. *To pass directions for the dispensation of the meeting of the Shareholders and creditors of the Applicant Company No. 2 in view of consent vide affidavit received;*
d. *To dispense with the publication of notices in the newspapers for convening the said meetings, in view of the dispensation of meetings of shareholders of both the Applicant Companies;*
e. *To approve the scheme with necessary modifications/ amendments, if any, or to direct or impose any conditions or limitations that the Hon'ble NCLT or any other authority may deem*

fit to or which may otherwise be considered necessary;

f. *To order and direct in pursuance of the provisions of Section 230 of the Companies Act, 2013 particularly Sub Section (5) thereto to issue notices to the concerned statutory regulatory authorities and their opinions and responses be obtained and examined, if required; and*

g. *To pass such other Orders as this Hon'ble Tribunal may deem fit in regards to the facts and circumstances of the case.*

We have heard the submissions of Ld. Counsel appearing on behalf of the Applicant.

Order reserved.

Sd/-	**Sd/-**
(DR. SANJEEV RANJAN)	**(BACHU VENKAT BALARAM DAS)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Priyanka Patel